

Smt.Sharanamma W/O Siddaramappa Gouda vs Akkanagamma W/O Late ... on 13 September, 2024

Author: S.Sunil Dutt Yadav

Bench: S.Sunil Dutt Yadav

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NC: 2024:KHC-K:6925-DB
RFA No.200049 of 2016
C/W RFA No 200062 of 2015

IN THE HIGH COURT OF KARNATAKA,

KALABURAGI BENCH

DATED THIS THE 13TH DAY OF SEPTEMBER, 2024

PRESENT

THE HON'BLE MR. JUSTICE S.SUNIL DUTT YADAV

AND

THE HON'BLE MR. JUSTICE RAMACHANDRA D. HUDDAR

REGULAR FIRST APPEAL NO.200049 OF 2016 (PAR/POS)

C/W

REGULAR FIRST APPEAL NO.200062 OF 2015 (PAR/POS)

IN R.F.A. NO.200049 OF 2016

BETWEEN:

SMT. SAROJA
W/O PAMPANAGOUDA,
AGE: 46 YEARS,
OCC: AGRICULTURE,
R/O: GABBUR VILLAGE,

Digitally signed
by SHILPA R
TENIHALLI
Location: HIGH
COURT OF
KARNATAKA

TQ: DEODURGA,
DIST: RAICHUR - 584 101.

...APPELLANT

(BY SRI SHIVAKUMAR KALL00R, ADVOCATE)

AND:

1. SMT. AKKANAGAMMA

W/O LATE CHANDRASHEKHARAPPA NELOGAL,
AGE: 66 YEARS,
OCC: AGRICULTURIST,
R/O: ANWARI VILLAGE,
TQ: LINGASUGUR,
DIST: RAICHUR - 584 101.

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NC: 2024:KHC-K:6925-DB
RFA No.200049 of 2016
C/W RFA No 200062 of 2015

2. SMT. MALLAMMA
W/O LATE CHANDRASHEKHARAPPA NELOGAL
AGE: 49 YEARS,
OCC: AGRICULTURIST,
R/O: ANWARI VILLAGE,
TQ: LINGASUGUR,
DIST: RAICHUR - 584 101.
3. SHARANABASAVA
S/O LATE CHANDRA SHEKHARAPPA NILOGAL
AGE: 26 YEARS,
OCC: AGRICULTURIST,
R/O: ANWARI VILLAGE,
TQ: LINGASUGUR,
DIST: RAICHUR - 584 101.

4. SMT. SUMANGALAMMA
W/O VIRUPANA GOUDA,
AGE: 52 YEARS,

OCC: HOUSEHOLD AFFAIRS,
R/O: ANWARI VILLAGE,
TQ: LINGASUGUR,
DIST: RAICHUR - 584 101.

AS PER COURT ORDER
LEGAL HEIR OF R1

5. SMT. SAVITRAMMA
W/O SHARANAPPA GOUDA,
AGE: 40 YEARS,

OCC: HOUSEHOLD AFFAIRS,
R/O: ANWARI VILLAGE,
TQ: LINGASUGUR,
DIST: RAICHUR - 584 101.

AS PER COURT ORDER
LEGAL HEIR OF R1

6. CHANDRASHEKHARAPPA
S/O SHIVALINGAPPA KAVITAL,
AGE: 46 YEARS,
OCC: AGRICULTURIST,
R/O: HIRENAGANOUR VILLAGE,
TQ: LINGASUGUR,

DIST: RAICHUR - 584 101.

7. SHIVAMURTI
S/O BASAPPA HUBBALLI,

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NC: 2024:KHC-K:6925-DB

RFA No.200049 of 2016

C/W RFA No 200062 of 2015

AGE: 30 YEARS,
OCC: AGRICULTURIST,
R/O: HIRENAGAN00R VILLAGE,
TQ: LINGASUGUR,
DIST: RAICHUR - 584 101.

8. SMT. AMARAMMA
W/O AMARAPPA,
AGE: 49 YEARS,
OCC: AGRICULTURE,
R/O: HIRENAGAN00R VILLAGE,
TQ: LINGASUGUR,
DIST: RAICHUR - 584 101.

9. SMT. SHARANAMMA
W/O SIDDARAMAPPA GOUDA,
AGE: 48 YEARS,
OCC: AGRICULTURIST,
R/O: ANWARI VILLAGE,
TQ: LINGASUGUR,
DIST: RAICHUR - 584 101.

AS PER COURT ORDER
LEGAL HEIR OF R1

...RESPONDENTS

(BY SRI AJAYAKUMAR A.K., ADVOCATE FOR R9;
SRI R.S. SIDHAPURKAR, ADVOCATE FOR R3;
NOTICE TO R2, R4, R5, R6, R7, R8 ARE SERVED;
V/O DTD. 06.01.2023 APPELLANT AND R4, R5 AND R9 ARE
TREATED AS LR'S OF DECEASED R1)

THIS RFA IS FILED UNDER SECTION 96 OF CPC, PRAYING
TO ALLOW THE ABOVE REGULAR FIRST APPEAL AND SET
ASIDE THE IMPUGNED JUDGMENT AND DECREE 24.04.2015
PASSED BY SENIOR CIVIL JUDGE, LINGASUGUR DISTRICT
RAICHUR IN O.S.NO.52/2012 AND DECREE THE SUIT
O.S.NO.52/2012 FILED BY THE APPELLANT / PLAINTIFF, IN
ENDS OF JUSTICE AND EQUITY.

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NC: 2024:KHC-K:6925-DB

RFA No.200049 of 2016

C/W RFA No 200062 of 2015

IN R.F.A. NO.200062 OF 2015

BETWEEN:

SMT. SHARANAMMA
W/O SIDDARAMAPPA GOUDA,
AGE: 46 YEARS,
OCC: AGRICULTURIST,
R/O: ANWARI VILLAGE,
TQ: LINGASUGUR,
DIST: RAICHUR - 584 120

...APPELLANT

(BY SRI AJAY KUMAR ASHOK KUMAR, ADVOCATE)

AND:

1. SMT. AKKANAGAMMA
W/O LATE CHANDRASHEKHARAPPA NELOGAL,

AGE: 64 YEARS,
OCC: AGRICULTURE,

R/O: ANWARI VILLAGE,
TQ: LINGASUGUR,

DIST: RAICHUR - 584 120.

Since deceased on
27.03.2022 hence
appellant and respondent
no.4,5 & 9 are treated as
LR's of Deceased
Respondent No.1
amended as per order
dated 06.01.2023

2. MALLAMMA
W/O LATE CHANDRASHEKHARAPPA NELOGAL,
AGE: 47 YEARS,
OCC: AGRICULTURE,
R/O: ANWARI VILLAGE,
TQ: LINGASUGUR,
DIST: RAICHUR - 584 120.

3. SHARANABASAVA
S/O LATE CHANDRASHEKHARAPPA NILOGAL,
AGE: 24 YEARS,
OCC: AGRICULTURE,
R/O: ANWARI VILLAGE,
TQ: LINGASUGUR,
DIST: RAICHUR - 584 120.

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NC: 2024:KHC-K:6925-DB
RFA No.200049 of 2016
C/W RFA No 200062 of 2015

4. SUMANGALAMMA
W/O VIRUPANAGOUDA,

AGE: 50 YEARS,
OCC: HOUSEHOLD,
R/O: ANWARI VILLAGE,
TQ: LINGASUGUR,
DIST: RAICHUR - 584 120.

5. SAVITRAMMA
W/O SHARANAPPAGOUDA,
AGE: 38 YEARS,
OCC: HOUSEHOLD,
R/O: ANWARI VILLAGE,
TQ: LINGASUGUR,
DIST: RAICHUR - 584 120.
6. CHANDRASHEKARAPPA
S/O SHIVALINGAPPA KAVITAL,
AGE: 44 YEARS,
OCC: AGRICULTURE,
R/O: HIRENAGAN00R VILLAGE,
TQ: LINGASUGUR,
DIST: RAICHUR - 584 122.
7. SHIVAMURTHI
S/O BASSAPPA HUBBALLI,
AGE: 28 YEARS,
OCC: AGRICULTURE,
R/O: HIRENAGAN00R VILLAGE,
TQ: LINGASUGUR,
DIST: RAICHUR - 584 122.
8. AMARAMMA
W/O AMARAPPA,
AGE: 47 YEARS,
OCC: AGRICULTURE,
R/O: HIRENAGAN00R VILLAGE,
TQ: LINGASUGUR,
DIST: RAICHUR - 584 122.
9. SMT. SAROJA
W/O PAMPANAGOUDA

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NC: 2024:KHC-K:6925-DB
RFA No.200049 of 2016
C/W RFA No 200062 of 2015

AGE: 44 YEARS,
OCC: AGRICULTURE,
R/O: GABBUR VILLAGE,
TQ: DEVADURGA,
DIST: RAICHUR - 584 122.

...RESPONDENTS

(BY SRI R.S. SIDHAPURKAR, ADVOCATE FOR R2 AND R3;
SRI SHARANAGOUDA V. PATIL, ADVOCATE FOR R9;
NOTICE TO R4, R5, R6, R7, R8 ARE SERVED;
V/O DTD.06.01.2023 APPELLANT AND R4, R5 AND R9 ARE
TREATED AS LR'S OF DECEASED R1)

THIS RFA IS FILED UNDER SECTION 96 OF CPC, PRAYING
TO ALLOW THE APPEAL BY SETTING ASIDE THE JUDGMENT
AND DECREE 24.04.2015 PASSED IN O.S.NO.52/2012 BY THE
SENIOR CIVIL JUDGE, AND J.M.F.C., LINGASUGUR AND
CONSEQUENTLY DECREE THE SUIT OF THE PLAINTIFFS WITH
COST THROUGHOUT, IN THE INTEREST OF JUSTICE AND
EQUITY.

THESE APPEALS COMING ON FOR FURTHER HEARING,
THIS DAY, JUDGMENT WAS DELIVERED THEREIN AS UNDER:

CORAM: HON'BLE MR. JUSTICE S.SUNIL DUTT YADAV
AND
HON'BLE MR. JUSTICE RAMACHANDRA D. HUDDAR

ORAL JUDGMENT

(PER: HON'BLE MR. JUSTICE RAMACHANDRA D. HUDDAR) These two appeals arise out of a common judgment dated 24.04.2015 passed in O.S.No.52/2012 by the Senior Civil Judge, Lingasugur (for short 'Trial Court'), dismissing the suit of the plaintiffs. RFA No.200062/2015 is filed by NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015 plaintiff No.1 and RFA No.200049/2016 is filed by plaintiff No.2 separately. As both these appeals arise out of a common judgment, with the consent of learned counsel for both the parties, they are taken up together for disposal.

2. The parties to these appeals are referred to with reference to their rank before the Trial Court.

3. The brief and relevant facts leading up to these appeals are as under:

That the suit in O.S.No.52/2012 was filed by the plaintiffs seeking the relief of partition and separate possession of 1/6th share each in the suit schedule properties. So also they have sought for the relief of declaration, declaring that, the sale deeds dated 29.09.2000 and 27.08.2007 are null and void and not binding on the plaintiffs' share. The plaintiffs have sought for rectification of the revenue entries as per the decree.

According to the case of the plaintiffs, one Sharanappa Nilogal was the initial propositus. He had a NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015 son by name Chandrashekarappa Nilogal and he is stated to be the propositus now. He had two wives by name, Akkanagamma and Mallamma. Akkanagamma is no more. In the wedlock between Chandrashekarappa and

Akkanagamma, plaintiff Nos.1 and 2 and defendant Nos.4 and 5 are born. Akkanagamma is arrayed as defendant No.1, who is no more and accordingly cause title is amended. Mallamma is stated to be the second wife of Chandrashekarappa is arrayed as defendant No.2 and her son Sharanabasava is arrayed as defendant No.3. The genealogical tree so mentioned by the plaintiffs is not disputed by any of the defendants.

It is the case of the plaintiffs before the Trial Court that, the suit schedule properties are the ancestral joint family properties of the plaintiffs and defendants and they are joint owners in possession of the same. It is contended that, with regard to the status of properties, defendant Nos.1 to 5 have denied. It is stated that, after verifying the records, the plaintiffs came to know that, NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015 Survey No.564 measuring 5 acres 3 guntas was sold by defendant Nos.1 and 2 under the registered sale deed dated 29.09.2000 and Survey No.558 measuring 1 acre 13 guntas, which is described as item No.3 in the schedule is sold on 27.08.2007. As per the case of the plaintiffs, such a sale made by defendant Nos.1 and 2 was not for legal necessity of the family. The said sale deeds are sham, tainted with fraud and void ab initio and also not binding on the plaintiffs.

4. Pursuant to the suit summons before the Trial Court, defendant Nos.1, 4 and 5 have appeared through their counsel. It was defendant No.1 filed the written statement and defendant Nos.4 and 5 filed a memo adopting the written statement filed by defendant No.1. These defendants admit the entire claim of the plaintiffs and prayed for partition. Defendant Nos.2 and 3 have appeared through their counsel and contested the suit of the plaintiffs by filing separate written statement, whereas

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NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015 defendant Nos.6 to 8 though served with suit summons, did not appear and therefore, they were placed *ex parte*. It is specifically contended that, without any cause of action, the plaintiffs have filed a suit and the same is barred by limitation. It is further contended that, already there was a partition in the lifetime of Chandrashekarappa and to that effect, mutation entries have been effected in the revenue records. Therefore, the suit is not maintainable. It is contended that, as already there was a partition, the plaintiffs cannot claim any share. It is contended that, Chandrashekarappa has sold Survey No.564, which is described as item No.2 of the schedule property during his lifetime and it is contended that, the said sale deed was executed after his death. It is contended that, because of ill-health of Chandrashekarappa as he was suffering from heart and diabetes, the property was sold. The said sale deeds in favour of defendant Nos.6 and 7 are valid. The plaintiffs

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NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015 have no share to the extent of 1/6th as prayed. Thus, it is prayed by defendant Nos.2 and 3 to dismiss the suit of the plaintiffs.

6. Based upon the rival pleadings of both the parties, the learned Trial Court in all framed nine issues. They read as under:

1. Whether the plaintiff prove that suit schedule properties are joint family properties of themselves and defendants?

prove that already partition take place in the joint family properties during the lifetime of father of the plaintiffs?

3. Whether the plaintiffs prove that alleged sale deed dated 29.09.2000 belongs to the defendant No.6 is void-ab-initio and not binding on them?

4. Whether the plaintiffs proves that alleged sale deed dated 27.08.2007 is void-ab- initio and not binding on them?

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NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015 proves that due to family and legal necessity, sale deed executed in favour of the defendant Nos.6 and 7?

6. Whether the plaintiffs are entitle for the relief of declaration?

7. Whether the plaintiffs are entitled for relief of partition and separate possession?

8. Whether the defendant No.1 and 4 are entitle for relief of partition and separate possession?

9. What order or decree?

7. To substantiate the claim of the plaintiffs, plaintiff No.1 entered the witness box as PW.1 so also examined two witnesses as PW.2 and PW.3. On behalf of the plaintiffs, Exs.P1 to P16 are marked. To rebut the evidence of the plaintiffs, defendant No.2 entered the witness box as DW.1 and also examined four witnesses as DW.2 to DW.5 and got marked Exs.D1 to D14. Defendant Nos.2 and 3 have examined one witness as DW.6, but he has not tendered for cross-examination and therefore, his

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NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015 evidence was discarded and treated as non est. Defendant Nos.1, 4 and 5 examined defendant No.5 as DW.7 on their behalf.

8. On closure of the evidence of both the side and on evaluation of the evidence placed on record by the parties, the learned Trial Court answered issue Nos.1, 3 and 4 in the affirmative and issue Nos.5 to 8 in the negative and ultimately dismissed the suit of the plaintiffs Relying upon a judgment of this Court in the case of G.M.Mahendra vs. G.M.Mohan and Another reported in ILR 2011 (4) KCCR 2461 (DB). The Trial Court while dismissing he suit observed that, the property, which was sold by Chandrashekarappa in not included in the schedule and therefore, the suit of the plaintiffs is bad for partial partition. This is how, now both the appellants/plaintiffs by filing their independent appeals

are before this Court challenging dismissal of their suit.

9. The learned counsel for the appellants/plaintiffs in both these appeals with all vehemence submits that,

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NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015 merely because the property which was sold by Chandrashekarappa during his lifetime in the year 1974, the suit of the plaintiffs was dismissed by the Trial Court. As the plaintiffs and other defendants are not claiming any right in the said property and as the said sale has taken place in the year 1974, in view of proviso to Section 6 of the Hindu Succession (Amendment) Act, 2005, the said sale saved. The plaintiffs cannot include the said property, which was already sold. Therefore, the finding of the learned Trial Court that, the said property so sold is not included has no bearing on the facts of the case. It is submitted that, relationship is admitted, so also their entitlement is also admitted. So far as relationship of Chandrashekarappa with Mallamma as second wife, is also admitted. It is submitted that, Sharanabasava, the son of the second wife of Chandrashekarappa would get the share in the property on the death of Chandrashekarappa as succession opens to him on demise of Chandrashekarappa. It is submitted that, these plaintiffs being the daughters of Chandrashekarappa are entitled to

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NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015 claim their share in view of the provisions of Section 6 of the Hindu Succession (Amendment) Act, 2005. Therefore, the suit of the plaintiffs ought to have been decreed by the Trial Court. Accordingly, he prays to allow the appeals.

10. On the other hand, the learned counsel for the respondents/defendants would submit that, the learned Trial Court has rightly dismissed the suit of the plaintiffs as the suit was bad for non inclusion of the property of the family. The judgment and decree of the Trial Court do not require any interference by this Court. Hence, he prays to dismiss the appeals.

11. We have given our anxious consideration to the arguments of both the side and perused the records.

12. Having heard the arguments of learned counsel for the parties, the only point that would arise for our consideration is:

"Whether the Trial Court is justified in dismissing the suit negating the relief of partition as claimed by the plaintiffs?"

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NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015

13. So far as relationship between the plaintiffs and defendants is concerned, the same is admitted. The genealogical tree so furnished by the plaintiffs produced along with the appeal memo reads as under:

Sharanapa Nelogal Sahukar (Dead) Chandrashekarappa Nilogal (Dead) and Smt. Akkanagamma (1 Wife) Smt. Mallamma (2 Wife) Defendant No.1 Defendant No.2
Smt. Sharanamma (Pltf No.1) Sharanabasava (Deft. No.3) Smt. Saroja (Pltf No.2)
Smt. Sumangalamma (Deft. No.4) Smt. Savitramma (Deft. No.5)

14. As per this genealogical tree, one Akkanagamma is the first wife of Chandrashekarappa and in the wedlock between Chandrashekarappa and Akkanagamma, four children are born. They are arrayed as plaintiff Nos.1 and 2 and defendant Nos.4 and 5. In the wedlock between the second wife - Mallamma and Chandrashekarappa, one son by name Sharanabasava is

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NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015 born. So far as the status of defendant No.2 as the second wife of Chandrashekarappa, the same is not denied by the plaintiffs or by defendant Nos.4 and 5. It is the specific case of the plaintiffs that, the suit schedule properties so mentioned in the schedule are the joint family properties and they have got their respective legitimate share in the same.

15. PW.1 - Sharanamma, who is plaintiff No.1 has entered the witness box before the Trial Court and reiterated the contents of the plaint in her evidence. In support of the plaintiffs' case, various documents are produced from Exs.P1 to P16. While marking these documents, defendants have not raised any objections. With regard to existence of Survey No.548, a question is directed to PW.1 by the counsel for defendant Nos.2 and 3 and she deposed ignorance about existence of said survey No.548. Though lengthy cross-examination is directed to PW.1, but she is consistent about her status as a daughter

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NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015 of Chandrashekarappa and her claim in the schedule property.

16. PW.2 and PW.3 also have stated in line with the evidence of PW.1, who are the witnesses examined by the plaintiffs. They are well conversant with the family of the plaintiffs and defendants.

17. To rebut the evidence of the plaintiffs, defendant No.2 entered the witness box as DW.1 and spoken in line with the contents of the written statement. Only serious objection of the contesting defendant is that, the property so sold by Chandrashekarappa is not included and therefore, the suit is not maintainable. Even the other witnesses examined in this case also speak in similar words.

18. The learned counsel for the appellant/plaintiff No.1 in RFA No.200062/2015 has filed an interim application under Order 41 Rule 27 of CPC requesting this Court to receive the additional evidence by producing the copy of the sale dated 22.07.1974 to show that, during

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NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015 the lifetime of said Chandrashekarappa, he has sold Survey No.548.

19. The said sale deed is of the year 1974 and till date none of the defendants have challenged the same. The only finding of the trial Court is that, as the said property in Sy.No.548 is not included in the suit schedule properties, the suit of the plaintiffs is bad for non-joinder of the said property. When the property was sold in the year 1974, in view of the provisions of Section 6 of the Hindu Succession Act, the cut off date with regard to alienation is 20.12.2004. The said property was sold in the year 1974. When the property herein is sold long back, merely because that property is not included by the plaintiffs, it will not non-suit the plaintiffs on the ground of non-inclusion of the said property. The plaintiffs are not claiming any right in the said property. Even it is pleaded by the contesting defendants that the deceased - Chandrashekharappa was suffering from disease and to meet his medical expenses, the said property was sold. If

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NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015 that is so, the very observation of the learned trial Court that the plaintiffs are not entitled for any relief is apparently wrong and incorrect. Therefore, such finding of the trial Court holding that suit of the plaintiffs is not maintainable is not at all tenable in the eyes of law. The Trial Court is not justified in dismissing the suit.

20. Now coming to the entitlement of the share to the plaintiffs and defendants. The learned counsel for the appellant in RFA No.200062/2015 made available the genealogical tree and calculation of the share. As deceased Chandrashekharappa had two wives and the suit was filed during life time of both wives. The first wife died on 27.03.2022 as per the materials made available by the appellants. The second wife Mallamma is still alive and she has been arraigned as defendant No.2 in the suit. In the wedlock between Akkanagamma and Chandrashekharappa four children are born, they are plaintiff Nos.1 and 2 who are the appellants in these two appeals and defendant No.4 and 5. As Sharanabasava is

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NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015 born in the wedlock between deceased Chandrashekharappa and his second wife Mallamma, as per the provisions of Section 16 of the Hindu Marriage Act, which speaks about legitimacy of children of the void and voidable marriage they are also entitled for the share in the property of the father. This position of law is well settled by the Hon'ble Apex Court in the case of Revansiddappa and Another v. Mallikarjun and Others¹,

wherein, the Apex Court while discussing with regard to position of such child born from void or voidable marriage under the provisions of Section 16 of the Hindu Marriage Act, conferred legitimacy and though the son is not a coparcener but succeed upon to such a son born in void or voidable marriages only after demise of the father. Therefore, now in view of provisions of Hindu Succession Act, we have to apply the doctrine of notional partition to calculate the shares. This position of law has also been followed by the co-ordinate Bench of this Court in the case (2023)Vol 10 SCC page 1

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NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015 of ANNAPURNA (SMT.) AND OTHERS versus SMT. SHANTAWWA AND ANOTHER² rendered by one of the Members of this Bench i.e., (RDHJ). In view of the law laid down by the Apex Court in Revansiddappa's case, now Sharanabasava being the son born from the second wife is entitled for a share in the share of Chandrashekharappa. Insofar as notional partition is concerned, Chandrashekharappa, Sharanamma, Saroja, Sumangalamma and Savitramma will get the share in the property. That means there would be 5 shares to be divided amongst the children of Chandrashekharappa and his four children. That means 1/5 share each to Chandrashekharappa, plaintiff No.1- Sharanamma, plaintiff No.2 - Saroja, defendant No.4 - Sumangalamma and defendant No.5 - Savitramma. Then, in Chandrashekharappa's 1/5th share is to be again divided amongst his first wife defendant No.1, both plaintiffs and defendant Nos.3 to 5 and it works out to 1/30. HCR 2024 Kant.6

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NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015 Akkanagamma's share again is to be divided in between plaintiffs and defendant Nos.4 and 5 equally. Thus, the share of plaintiff Nos.1, 2, defendant Nos. 4 and 5 is calculated at 29/120 each. Defendant No.3 is entitled to 1/30th share in the share of Chandrashekharappa. Thus, the plaintiffs are held entitled for their share as stated above. The allocation of share between the parties is shown in terms of arithmetic calculation as under:

Sharanappa Nelogal Sahukar (Dead) Son Chandrashekharappa Nilogal (Dead on 17.07.2005) 1/5 Smt. Akkanagamma (Deft-1) Smt. Mallamma (Deft-2) st (1 Wife) Dead 27.03.2022) nd (2 Wife)(Not entitled) Son Sharanabasava (Deft.No.3) th 1/30 (Share in 1/5 share of Chandrashekharappa) Sharanamma (Pltf No.1) Saroja (Pltf No.2) Savitramma (Deft.No.5) 1/5 Sumangalamma (Deft No.4) + + + 1/30 + + + + 1/20 +

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NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015

21. The learned trial Court while discussing with regard to the alienation of the properties in the year 2000 i.e., dated 29.09.2000 and 27.08.2007, it is observed that the said sale deeds are not valid sale

deeds. The said finding is not challenged by the contesting defendants by preferring any appeal. Thus, the said finding with regards said sale deeds had attained finality. Therefore, when the said sale deeds are not valid in the eyes of law as observed by the trial Court, the plaintiffs and defendants stated supra are entitled for share in the said properties and they are not binding on them. Therefore, learned trial Court merely because the properties which were sold in the year 1974 are not included has dismissed the suit, which in our opinion is incorrect. Therefore, the impugned judgment and decree requires interference by this Court and the appeals have to be allowed by granting decree for partition and separate possession of the suit properties. Accordingly, the aforesaid finding is answered in favour of the plaintiffs.

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NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015

22. Resultantly, we pass the following:

ORDER

a) Both the appeals are allowed.

b) The judgment and decree dated 24.04.2015 passed in O.S. No.52/2012 by the Senior Civil Judge, Lingasugur, is hereby set aside.

c) Consequentially the suit of the plaintiffs is decreed.

d) Both the plaintiffs are held entitled for 29/120th share each in the suit schedule properties by metes and bounds. Defendant Nos.4 and 5 are also held entitled for 29/120th share each.

Whereas, defendant No.3 is entitled for 1/30th share in the share of his father (i.e. 1/5th).

e) There shall be preliminary decree in the above terms.

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NC: 2024:KHC-K:6925-DB C/W RFA No 200062 of 2015

f) The parties of the suit are at liberty to seek final decree proceedings as required under Section 54 of Cr.P.C.

g) Looking to the relationship of the parties no order as to cost.

Sd/-

(S.SUNIL DUTT YADAV) JUDGE Sd/-

(RAMACHANDRA D. HUDDAR) JUDGE SRT/SBS